

**Ref No.:** BD-CW-SAMCO-ACE-LET-027

**To:** ACE Project Management | Moharram Bakhoum

**Attention:** Eng. Abdelaziz Mohamed (Project Manager)

**Project Name:** The Big Business District.

**Contract/Package:** Construction Works.

**Subject:** Formal Rejection of Assigning MEP Works



**Dear Sir,**

With reference to your letter BD-ACEPM-SAMCO-LET-017 dated 26/11/2025 regarding Variation Instruction No. BD-ACEPM-SAMCO-VI-0003, and following a detailed review of the Contract and its Particular Conditions, we hereby state SAMCO's contractual position clearly and formally as follows:

### **1. SAMCO's Contractual Scope Is Strictly Civil & Structural**

The Contract documents, including the amended Particular Conditions, define SAMCO as the Civil and Structural Works Contractor only.

Based on the following explicit clauses:

- Sub-Clause 4.1 (Contract Page 14)  
The Contractor shall not be responsible for the design or execution of any Permanent Works outside the clearly defined scope.  
All MEP-related works are considered Permanent Works of another discipline, and therefore lie completely outside SAMCO's contractual obligations.
- Sub-Clause 4.6 (Contract Page 16).  
The Contractor is responsible for co-operation only, and shall not execute the works of other specialized trades.  
MEP is a specialized trade; therefore, SAMCO cannot be instructed to undertake it. Accordingly, any instruction directing SAMCO to execute MEP activities constitutes a direct violation of the contractual scope.

### **2. Incorrect Interpretation of Sub-Clause 1.5**

The amended Sub-Clause 1.5 does not include any provision that permits the reassignment of specialized trades or the addition of new disciplines to the Contractor's scope.

Therefore, the justification presented in your letter does not legally apply.

### **3. VI-0003 Activities Cannot Be Considered a Variation Under Any Circumstance**

SAMCO confirms that the activities required under VI-0003 cannot be classified as a Variation, as Variations under the Contract may only be used to adjust or modify items within the same nature of the civil and structural works. The instructed works are pure MEP activities, they are not structural, they are not required for the stability of the concrete tank, and they fall entirely outside SAMCO's original contractual scope. Accordingly, SAMCO formally rejects any assignment of MEP works, and will continue executing only the civil and structural works defined in the Contract.

### **4. Repeated Requests by SAMCO to Appoint the MEP Contractor – and Responsibility for Delays**

SAMCO would like to record that, according to the coordination meeting minutes dated 28/09/2025 and 27/10/2025, it was clearly confirmed that SAMCO's role is limited strictly to coordination only with the MEP contractor, and that SAMCO bears no responsibility for executing any MEP-related activities.

Furthermore, SAMCO has formally requested—through official correspondences dated 07/08/2025 and 24/09/2025—the appointment of the specialized MEP contractor to enable the commencement of the required technical coordination and to maintain proper work sequencing without delay.

However, no MEP contractor has been appointed to date, which has already impacted the workflow and work sequence.

Accordingly, SAMCO reiterates its request for the immediate appointment of the specialized MEP contractor, and confirms that any delay resulting from the absence of such contractor remains entirely outside SAMCO's responsibility, in line with our previous letter BD-CW-SAMCO-ACE-LET-024.

#### **5. SAMCO Reserves All Contractual Rights**

Including, but not limited to:

- Claiming for any delay or disruption caused by non-contractual instructions.
- Refusing any works outside the agreed scope.
- Protecting SAMCO from any liability associated with MEP or other specialized disciplines.

"It is neither understandable nor contractually justified to handle the same matter in two contradictory ways; it was initially presented to us in a friendly manner as if it were an optional decision for SAMCO to accept or decline, whereas it is now being imposed as a mandatory obligation that must be executed, despite the fact that such works do not fall within our contractual scope."

Yours faithfully,

**Eng./ Mohammed Sami Mohammed**  
**Project Director**  
**SAMCO National Construction**



**Ref No.:** BD-CW-SAMCO-ACE-LET-027

**30-November-2025**

**To:** ACE Project Management | Moharram Bakhoun

**Attention:** Eng. Abdelaziz Mohamed (Project Manager)

**Project Name:** The Big Business District.

**Contract/Package:** Construction Works.

**Subject:** Formal Rejection of Assigning MEP Works

**Dear Sir,**

With reference to your letter BD-ACEPM-SAMCO-LET-017 dated 26/11/2025 regarding Variation Instruction No. BD-ACEPM-SAMCO-VI-0003, and following a detailed review of the Contract and its Particular Conditions, we hereby state SAMCO's contractual position clearly and formally as follows:

### **1. SAMCO's Contractual Scope Is Strictly Civil & Structural**

The Contract documents, including the amended Particular Conditions, define SAMCO as the Civil and Structural Works Contractor only.

Based on the following explicit clauses:

- Sub-Clause 4.1 (Contract Page 14)  
The Contractor shall not be responsible for the design or execution of any Permanent Works outside the clearly defined scope.  
All MEP-related works are considered Permanent Works of another discipline, and therefore lie completely outside SAMCO's contractual obligations.
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The Contractor is responsible for co-operation only, and shall not execute the works of other specialized trades.  
MEP is a specialized trade; therefore, SAMCO cannot be instructed to undertake it. Accordingly, any instruction directing SAMCO to execute MEP activities constitutes a direct violation of the contractual scope.

### **2. Incorrect Interpretation of Sub-Clause 1.5**

The amended Sub-Clause 1.5 does not include any provision that permits the reassignment of specialized trades or the addition of new disciplines to the Contractor's scope.

Therefore, the justification presented in your letter does not legally apply.

### **3. VI-0003 Activities Cannot Be Considered a Variation Under Any Circumstance**

SAMCO confirms that the activities required under VI-0003 cannot be classified as a Variation, as Variations under the Contract may only be used to adjust or modify items within the same nature of the civil and structural works. The instructed works are pure MEP activities, they are not structural, they are not required for the stability of the concrete tank, and they fall entirely outside SAMCO's original contractual scope. Accordingly, SAMCO formally rejects any assignment of MEP works, and will continue executing only the civil and structural works defined in the Contract.

### **4. Repeated Requests by SAMCO to Appoint the MEP Contractor – and Responsibility for Delays**

SAMCO would like to record that, according to the coordination meeting minutes dated 28/09/2025 and 27/10/2025, it was clearly confirmed that SAMCO's role is limited strictly to coordination only with the MEP contractor, and that SAMCO bears no responsibility for executing any MEP-related activities.

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Yours faithfully,

**Eng./ Mohammed Sami Mohammed**  
**Project Director**  
**SAMCO National Construction**